

Responses to Mayor Sam Alai Inquiries April 22, 2019

What follows is a summary of answers to questions that were reportedly asked at a public meeting that was held in Broadview Heights on January 28, 2019, and that were submitted to the District by Mayor Sam Alai on Tuesday, April 9, 2019. The answers to a good many of your questions can be identified in The Memorandum Of Understanding (MOU) that the School District entered into with the City of Brecksville. The document provides a preliminary outline of the various transactions associated with the new Elementary School and Field House and addresses pertinent topics with respect to your questions. The supplemental information below should help as well.

Pertaining to the Land Swap with the City of Brecksville: Ohio Revised Code Section 3313.40 creates a standard in land swaps between Cities and School Districts that the exchange must be “mutually beneficial.” We believe this statute encourages governments to work together for their respective communities. Both the Brecksville City Council and the Board of Education have concluded that the various land swaps, right of continued usage and related developments and sharing of spaces are mutually beneficial. Looking solely to appraised values would ignore key elements of the overall transaction: District savings from not building gyms and related spaces (approximately \$3,000,000), the advantages of all students having access to four gyms during the school day, shared surveying and related project expenses and retained right to use Stadium Drive.

The following answers below specifically addressed other topics raised in the Mayor’s line-of-questions:

- Stadium Drive is included in the Land Swap, but the District and City need to develop a Shared Use Agreement related to the District’s continue use of the property.
- As to appraisals, our legal counsel has advised that appraisals of school buildings are of limited value. The major challenges of such appraisals include location of schools being generally in a single family residential neighborhood, zoning issues, finding comparative sales of comparative properties, costs associated with repurposing schools into a commercial venture and redevelopment options generally being some type of residential housing (drug treatment, senior housing, assisted living or medical clinic) which often does not blend with the existing neighborhoods. Strongsville, North Ridgeville and Cleveland School each had appraisals and sold at public auction (as required by 3313.41 of the ORC) for substantially less than the appraised values. Politically, if the School District sells property it often is blamed for the resulting use of the property which can create long-term political challenges.
- No other property trades are being considered at this time. The District is leasing space from the City of Brecksville for the Pre-K.
- The Real Estate transfer agreements will be available for all to review prior to the Board’s consideration. It is anticipated once the wetlands process is completed, the land transfer will occur. We do not want to create confusion as to property ownership as we go through the wetlands process.
- As completed by the MOU, the Field House will be on City property and the School will be on the District’s 25 acres. The property boundary will run through the building and will be finalized once the design is completed.

- There is no plan for a lease between the City of Brecksville and the School District. However, there will be easement agreements related to the project for ingress/egress and utilities.
- It is currently anticipated that the District's use of the Field House will be limited to School Hours on School Days and during varsity tournaments at the High School.
- The Field House is being designed and paid for by the City. The operating costs of the School will be paid by the District and the operating costs of the Field House by the City.
- Insurance on the Field House will be under a City policy. If for some reason that cannot occur, the City will pay for the proportional costs of insurance.
- BBHCSD may have access to the Field House for evening activities with the permission of the City. Currently there are no such plans.
- We do not discuss the specifics of safety and security in public forums. However, our design team has met with police and fire representatives of both cities to review safety and security designs. To our understanding, all recommendations are being implemented. We can arrange a detailed briefing for you on these issues. As a general matter, the City is not using the Field House during the School Day. We anticipate that there may be a recreation center employee or two in the office space. The District will have an office and storage in the Field House for its purposes
- We do not anticipate additional burden on utilities on the surrounding neighborhood. We are still processing the recommendation of the traffic study. If there is a need for such improvements, they would be project expenses.
- The City of Brecksville filed the wetlands mitigation documents in February 2019. They are still under review with the Army Corp of Engineers and OEPA.
- Early designs did have a connector road between the two properties. However, the City of Brecksville is taking responsibility for the connector road development which they may perform with their own workers. Again, The City is responsible for the connector.
- We are hopeful that construction will start in late October 2019. However, that start date is subject to the wetlands reviews. Pending construction starts in October 2019, the school would open in August 2021.
- Relative to Floor plans, they certainly have been presented to the public during board meetings, however we also believe that making them generally available is a safety and security issue. If you would like to see them, that can be arranged.

We hope that these answers provide sufficient information and even more insights to the questions that were raised at your public meeting earlier this year. The District will continue hosting public meetings, posting information and remaining open and transparent regarding this milestone endeavor for the Brecksville-Broadview Heights City Schools Community.